

where infants were interested, unless an increase of income was absolutely required for their maintenance ; but considering the improbability of there being children in that case, he made the order (*c*).

In another case the tenant for life of a residue applied for the sale of Bank Annuities and the investment of the proceeds upon Bank stock, and the Court, after taking time to consider, declined to make any order, on the ground that the exercise of the power by the Court was discretionary, and that there were no special circumstances to call for such a change of investment (*d*).

But where a tenant for life had a wife and five children, and his income, exclusive of the dividends of the fund in Court (6357*l*. 15*s*. 2*d*. Consols), was only 70*l*. per annum, the Court thought these circumstances sufficient to justify an investment in Bank stock, and made the order accordingly (*e*).

So where the tenant for life was suffering from ill [*311] health and * was straitened in his circumstances,

and asked for an investment of one moiety in India stock and the other moiety in Bank stock, the Court assented to the prayer, with the qualification that as investment in India stock involved a possible loss of capital, the whole fund should be invested in Bank stock (*a*).

So where a fund was charged with an annuity of 500*l*. per annum, and was insufficient for its purpose, the Court, though it would not have listened to an application with the mere view of augmenting the income of the tenant for life, directed an investment in East India stock, in order to aid the primary intention of providing for the annuity (*b*).

[9. Powers in Acts of Parliament. — There has been a great conflict of opinion as to whether] the powers conferred by

(*c*) *Montefiore v. Guedella*, W. N. 1868, p. 87.

(*d*) *Maclaren v. Stainton*, M. R. July 4, 1861.

(*e*) *Peillon v. Brooking*, M. R. July 6, 1861; and see *Re Boyces Minors*, 1 Ir. R. Eq. 45; *Re Ingram's Trusts*, 11 W. R. 980, where the tenant for life by the change would

receive more than two dividends in the year.

(*a*) *Re Longford's Trust*, 2 J. & H. 458; and see *Vidler v. Parrott*, 4 N. R. 392.

(*b*) *Mortimer v. Picton*, 10 Jur. N. S. 83; and see *Hurd v. Hurd*, 11 W. R. 50; *Fluid v. Fluid*, 7 L. T. N. S. 590.